

25STCV20074 25STCV20074

County: los-angeles

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Case Number: 25STCV20074 Hearing Date: July 15, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

MICHAEL D ARNETT

;

Plaintiff,

vs.

FCA US LLC

, et al.;

Defendants.

Case

No.:

25STCV20074

Hearing

Date:

July
15, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

(1)

defendant

FCA US LLC's demurrer to PLAINTIFF'S complaint

(2)

defendant

FCA US LLC's motion to strike punitive damages CLAIM from PLAINTIFF'S
complaint

MOVING PARTY: Defendant FCA US LLC

RESPONDING PARTIES: Plaintiff Michael D Arnett

(1)

Demurrer

to Complaint

(2)

Motion

to Strike Punitive Damages Claim from Complaint

The court considered the moving, opposition, and reply papers filed in
connection with the demurrer and motion to strike.

BACKGROUND

Plaintiff Michael D Arnett

("Plaintiff") filed the Complaint in this action against defendants FCA US LLC

("Defendant") and Victorville Motors Chrysler Jeep Dodge Ram Fiat on June 30,

2025.

Defendant now moves the court for an order (1) sustaining its demurrer to Plaintiff's first, second, third, fourth, and sixth causes of action on the ground that the causes of action are time-barred by the applicable statutes of limitations, (2) sustaining its demurrer to the third cause of action on the ground that it fails to state facts sufficient to support an additional and distinct claim for breach of the Song-Beverly Consumer Warranty Act under Civil Code section 1793.2, subdivision (a)(3), (3) sustaining its demurrer to the sixth cause of action on the ground that it fails to allege facts sufficient to state a claim for fraudulent inducement – concealment with the requisite particularity, and (4) striking from the Complaint Plaintiff's prayer for punitive damages.

REQUEST FOR JUDICIAL NOTICE

The court denies Defendant's request for judicial notice of Exhibits 1 through 5.

DEMURRER

The court overrules Defendant's demurrer to the first, second, third, and sixth causes of action on the ground that the causes of action are time-barred by the applicable statutes of limitations because Plaintiff alleges that he discovered Defendant's wrongful conduct shortly before the filing of the complaint (Compl. ¶ 37.) (Geneva Towers Ltd. Partnership v. City of San Francisco (2003) 29 Cal.4th 769, 781 ["In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred"].)

The court overrules Defendant's demurrer to the third cause of action on the ground that the Complaint fails to allege sufficient facts to support a claim because Plaintiff alleges that Defendant failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. (Compl., ¶ 52.) (Civ. Code § 1793.2, subd. (a)(3) ["Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall ... [m]ake available to authorized service and repair facilities sufficient service

literature and replacement parts to effect repairs during the express warranty period”].)

The court sustains Defendant's demurrer to the fourth cause of action for breach of the implied warranty of merchantability because it does not state facts sufficient to constitute a cause of action because the cause of action is barred by the statute of limitations since (1) “[t]he statute of limitations for breaches of the implied warranty of merchantability is four years” after the accrual of the cause of action; (2) a cause of action accrues when the breach occurs, regardless of the lack of knowledge of the breach, which “occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered[;]” (3) an implied warranty “is not a warranty that explicitly extends to future performance of the goods[.]” such that the statute of limitations occurs upon tender of delivery and not “when the breach is or should have been discovered[;]” and (4) Plaintiff has alleged that they entered into a warranty contract with Defendant on September 14, 2019, for the subject vehicle (Compl., ¶ 7), which appears to allege the date of delivery thereof, but they filed this action more than four years later, on June 30, 2025. (Code Civ. Proc., § 430.10, subd. (e); Com. Code, § 2725, subds. (1), (2); *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305-1306 [“California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute of limitations for warranties arising under the Uniform Commercial Code: section 2725 of the Uniform Commercial Code”]; *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 143.)

The court sustains the demurrer to the sixth cause of action for fraudulent inducement – concealment because it does not state facts sufficient to constitute a cause of action since Plaintiff has not alleged the element of Defendant's duty to disclose the engine defect since they have not alleged facts establishing a transactional relationship between themselves and Defendant, including because Plaintiff has not alleged facts establishing that they purchased the vehicle directly from Defendant or its agent and that, during the course of those direct dealings, Defendant concealed facts regarding the engine defect from Plaintiffs.[1] (Code Civ. Proc., § 430.10, subd. (e); *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41 [circumstances

imposing a duty to disclose “presuppose a preexisting relationship between the parties” which “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”].)

The burden is on the plaintiff

“to articulate how it could amend its pleading to render it sufficient.” (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) To satisfy that burden, a plaintiff “must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

The court finds that Plaintiff has not articulated the facts that he could allege to render his fraud cause of action against Defendant sufficient and therefore sustains the demurrer without leave to amend.

MOTION TO STRIKE

Defendant moves the court for an order striking the prayer for punitive damages. (Compl. Prayer, ¶ (e).)

The court grants Defendant's motion to strike because Plaintiff has not alleged facts establishing that Defendant is guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd.

(a).) The court finds that Plaintiff has not articulated the facts that he could allege to render his prayer for punitive damages sufficient and therefore grants the motion to strike without leave to amend.

ORDER

The court overrules defendant FCA US LLC's demurrer to the first, second, and third causes of action.

The court sustains defendant FCA US LLC's demurrer to plaintiff Michael D Arnett's fourth and fifth causes of action without leave to amend.

The court grants defendant FCA US LLC's motion to strike plaintiff Michael D

Arnett's prayer for punitive damages without leave to amend.

The court orders defendant FCA US LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 15, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court

[1] Plaintiff

only makes the conclusory allegation that Defendant was under a duty to Plaintiff to disclose the defective nature of the subject vehicle and its engine because Defendant acquired knowledge of the engine defect through sources not available to Plaintiff, Defendant was in a superior position from various internal sources to know the facts about the defects, and Plaintiff could not have reasonable been expected to learn or discover the engine defect. (Compl., ¶ 67.) However, Plaintiff did not allege that that

there is a relationship between Plaintiff and Defendant that required Defendant to disclose known defects. (See, e.g., Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, review dismissed Dec. 18, 2024 [finding complaint sufficient and declining to hold claim barred on the ground that there was no relationship requiring Nissan to disclose known defects where plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with its warranty, and "Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers"] [emphasis added].)

Instead, the First Amended Complaint alleges that Defendant's dealerships are only its authorized agents for vehicle repairs. (FAC ¶ 51.)